

		The demurrer is OVERRULED as to the fourth cause of action for assault and battery. The allegation that Brown feared further harmful or offensive contact as a result of the coach’s repeated and aggressive conduct directly supports the apprehension element of civil assault. An offensive touching, although it inflicts no bodily harm, may nonetheless constitute a battery, and the same conduct may give rise to an assault insofar as it creates apprehension of such a battery. (<i>People v. Myers</i> (1998) 61 Cal.App.4th 328.) The intent required for battery is not an intent to cause harm, but an intent to do the act which causes the harm. (<i>Mesecher v. County of San Diego</i> (1992) 9 Cal.App.4th 1644.) The allegation that the coach intentionally and repeatedly grabbed and pulled Brown’s jersey in a forceful and aggressive manner satisfies this intent requirement, as the conduct was deliberate rather than accidental. The demurrer is SUSTAINED as to the fifth cause of action for harassment. This cause of action is duplicative of the discrimination cause of action. Brown brings this claim under the Unruh Civil Rights Act (Second Amended Complaint, paragraph 67.) Under the Unruh Civil Rights Act, there is no formal distinction between “discrimination” and “harassment” claims—both are treated as forms of intentional discrimination. (<i>Smith v. BP Lubricants USA Inc.</i>, <i>supra</i>, 64 Cal.App.5th at p. 151.) The demurrer is OVERRULED as to defendants Boesel, Lieu, and Wakabayashi. Brown has alleged agency, etc. and conspiracy between the individual defendants and Chapman. Plaintiff Brown is granted ten days leave to amend. To be clear, Plaintiff Brown is to file the SAC forthwith. If Plaintiff chooses to file a Third Amended Complaint in light of the court’s ruling on today’s demurrer, Plaintiff may do so within ten days. Defendant Chapman University to give notice.
2	DURKIN vs. MONROE 2026-01556307	Motion to Strike Defendant Angela T. Monroe aka Angela Marie Monroe’s motion to strike portions of complaint is DENIED.

The motion is procedurally defective. The complaint contains multiple allegations relating to punitive damages (see, e.g., Compl. ¶¶ 11g, 14a(2), GN-1(5) [alleging defendant’s conduct was “deliberate and egregious,” and “done willfully, maliciously, and/or with [conscious] disregard for the safety of ...[p]laintiff...”], IT-1(5)), and defendant has failed to comply with California Rules of Court, rule 3.1322(a). Specifically, the notice of motion seeks an order “strick[ing] portions of ... [the] [c]omplaint as follows: [¶] 1. Punitive Damages” (Ntc. of Mtn., p. 2)—but this does not identify any paragraph, cause of action, or count in the complaint, and does not quote in full any portion of the pleading sought to be stricken (Cal. Rules of Court, rule 3.1322(a)), and it is not the court’s role to exercise its own judgment in determining exactly what portions of the complaint are at issue. (See, e.g., *City of Monterey v. Carrnshimba* (2013) 215 Cal.App.4th 1068, 1099 [it is not the court’s role to develop a party’s argument for it, and “therefore need not consider undeveloped challenges”].)

The motion also fails on the merits. First, it attempts to rely on a “police event report” that defendant has loosely attached to the moving papers as exhibit A, which defendant contends shows she did not flee the scene. (See Mtn. P&As at p. 3:5-10.) Extrinsic evidence, however, is improper on a motion to strike. (Code Civ. Proc., § 437, subd. (a).) Further, defendant has not requested judicial notice of the police report and judicial notice of a police report is improper in any event. (See *People v. Jones* (1997) 15 Cal.4th 119, 171, fn. 17 [“we decline to take judicial notice of the truth or accuracy of an entry in a police report, because such a report is reasonably subject to dispute”] disapproved on another ground in *People v. Hill* (1998) 17 Cal.4th 800, 823, fn. 1; *In re Marriage of Brewster & Clevenger* (2020) 45 Cal.App.5th 481, 498 [a police report “is not subject to either mandatory or discretionary judicial notice under Evidence Code sections 451 or 452”].) And even if the court could consider the police report, it specifically labels the incident as a “hit and run” and notes that after crashing into plaintiff’s vehicle, defendant “cont[inue]d on” and left the scene. (Mtn. at Ex. A.)

Further, the complaint alleges sufficient facts in support of “malice” for purposes of punitive damages. (See Civ. Code, § 3294, subds. (a), (c)(1) [malice]; *Lackner v. North* (2006) 135 Cal.App.4th 1188, 1211, 1213, fn. 14 [malice based on unintentional conduct, elements]; *College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 724-725 [despicable conduct]; *Tomaselli v. Transamerica Ins. Co.* (1994) 25 Cal.App.4th 1269, 1287 [despicable conduct “has been described as ‘[having] the

		character of outrage frequently associated with crime”]; Veh. Code, § 20001, subds. (a)-(b) [felony offense for a driver involved in an injury accident to fail to provide the information and assistance required by Veh. Code, §§ 20003-20004]; see also Compl. ¶¶ MV-1, GN-1(2)-(3), IT-1(3), IT-1(5), EX-2(2)-(3).) Defendant shall give notice.
3	FCI Lender Services, Inc. vs. Tenenbaum 2026-01557568	Demurrer to Complaint <i>Vacated. See minute order dated 6/26/26.</i>
4	Jerisat vs. Young 2025-01476022	Motion for Order to Prohibit Plaintiff from Appearing in Pro Per Defendant Steven Young’s Motion to Prohibit Plaintiff Martin Jerisat from Appearing in Pro Per at Court Proceedings is DENIED. As an initial matter, the notice of motion does not provide 16 court days (plus two court days for manner of service) of notice of the hearing. Even if this procedural defect is set aside, the Motion is moot, as Plaintiff Martin Jerisat has filed an association of counsel, which absolves all of the purported concerns Defendant Young lists as a basis for this motion. Plaintiff shall provide notice.
5	JIMENEZ vs. CLEARPATH MEDICAL, LLC 2026-01556323	Demurrer to Complaint Defendant ClearPath Medical, LLC’s Demurrer to the Complaint is SUSTAINED. The demurrer has not been opposed by Plaintiff Karina Fernandez Jimenez. Plaintiff’s failure to oppose the demurrer may be treated as an implied concession to the merits of the same. (<i>Herzberg v. County of Plumas</i> (2005) 133 Cal.App.4th 1, 20.) Additionally, the court may construe the absence of a memorandum as waiver of all grounds not supported. (CRC 3.1113(a).) Based upon these grounds, and the reasons stated below, the court SUSTAINS the unopposed demurrer. <i>First Cause of Action – Pregnancy Discrimination</i>